

LAW OF TORTS

NUISANCE

1. MEANING OF NUISANCE

- i. In English language, nuisance means anything or anyone that causes annoyance, irritation or discomfort.
- ii. In law nuisance cannot be subjected to one definition because it comprises of 2 broad branches.
- iii. Nuisance may therefore be defined as:
 - A conduct which interferes with the convenience and comfort of the public or a section of it. This is Public Nuisance
 - A conduct which interferes with another person in the use and enjoyment of land or right attached to it. This is Private Nuisance.
- iv. Marrying these 2 categories of Nuisance together, Blacks law Dictionary defines Nuisance as:

“Activity which arises from unreasonable, unwanted or unlawful use by a person of his own property working obstruction or injury to the right of another or the public and producing such material annoyance, inconvenience and discomfort for which the law will presume resulting damage.”

2. NUISANCE AND OTHER TORTS

- i. **Nuisance is one of the 3 torts that affect use and enjoyment of land.** The other 2 are trespass to land and the rule in Ryland V. Fletcher.
- ii. Trespass addresses direct interference with use and enjoyment of land, Nuisance, addresses indirect interference with use and enjoyment of land.
- iii. Examples of indirect interferences include:
 - In **Butler V. Standard Telephone and Cable Ltd** allowing tree roots to grow into a neighbour's land was held to be nuisance.
 - In **Lemmon V. Webb** Overhanging tree branches that enter a neighbour's compound was nuisance.
 - In **Cramp v. Lambert** Smoke from fire in one land that enter another person's land was nuisance

- In **Hoare and Co V. MC Alpine**, Vibrations as a result of seismic operation on one land was held to be nuisance.
- iv. In **Esso Petroleum Co Ltd V. South Port Corporation** the act of jettisoning crude oil from a sinking ship into the sea which resulted in crude oil being carried by the waves of the sea into the beaches of the plaintiff was held to be nuisance and not trespass to land.
- v. In addition, nuisance is categorized into private and public, while trespass to land is not.
- vi. Although there are areas in which Nuisance and the rule in Ryland v. Fletcher overlap, there are also fundamental distinctions between these 2 torts. These areas of distinction are discussed in details in the chapter on the tort of Ryland V. Fletcher.

LOOK AND LEARN

The student should familiarize himself/herself with the distinguishing features and similarities of nuisance, trespass to land and the rule in Ryland V, Fletcher.

3. CHARACTERISTICS OF NUISANCE

- i. The basis of the law of nuisance is the maxim: **sic utere tuo ut alienum non laedas**: a man must not make such use of his property as unnecessarily to cause inconvenience to his neighbour.
- ii. Nuisance is not actionable per se
- iii. Nuisance primarily protects access. Access to light, access to air, access to the highway or other motor road etc.
- iv. The tort of nuisance strikes a balance between the right of a person to do what he likes on his property and the right of his neighbour to be free from interference and inconvenience. Nuisance would not arise from activities that arise from the ordinary everyday living such as the crying of Joy Nyanga's baby, the sound of Bola Chicago's door closing when he is leaving for work, the sound of the bell chiming in Saint Paul's Cathedral, the sound of happy children playing on the street etc. In the case of **Sedleigh V. O. Callagham** the court noted that there is no precise or universal formula for balancing the right of a person to do what he likes on his property with the right of his neighbour to be free

from interference, but the general rule is that the court would be guided by what is reasonable according to the ordinary usage of mankind living in society.

- v. The Tort of nuisance is the tort that is most suitable for the protection of the environment. Thus Nuisance has been applied in the Niger Delta to address the pollution of the environment by oil spillage in the case of **Councillor F.B. Farah V. Shell Petroleum Development Corporation**. In this case, the K-Dere community of Ogoni sued Shell for Nuisance as a result of the blow out from Bomu oil well belonging to Shell which resulted in massive oil spills on the community farm lands, streams and forests. The court held that Shell was liable in Nuisance for the oil spill and awarded compensation to the community.
- vi. It is not an excuse or a defence in an action for nuisance for the defendant to say that he was engaged in the act that constitutes the nuisance before the defendant came. In **BLISS V. HALL**, the defendant opened a factory for the manufacture of candles on a particular street. The factory emitted smoke and terrible smells. 3 years later the plaintiff bought a house next to the factory. The plaintiff sued for nuisance. The defendant argued that it was the plaintiff who came to the nuisance. The court rejected this defense.
- vii. It is not an excuse or a defence to an action for Nuisance for the defendant to say that the act causing the nuisance is for the benefit of the public.
- viii. The characteristic of the particular neighbourhood counts in determining whether a particular act constitutes nuisance. Thus in the case of **Ijoma V. Abiola**, the defendant who opened a poultry farm in a residential neighbourhood was held liable for nuisance.

4. CATEGORIES OF NUISANCE

- I. Nuisance is categorized as public nuisance and private nuisance
- II. Although these 2 categories of nuisance are recognized as sub-categories of nuisance, they have distinct features and distinct elements.
- III. These 2 categories must therefore be treated separately.

5. PUBLIC NUISANCE

- i. According to **Jollowicz and Winfield**, Public Nuisance is one, which materially affects the reasonable comfort and convenience of life of a class of the public who come within the sphere or neighborhood of its operation.
- ii. In the case of **A. G. V. P. Y. A. Quarries Ltd.**, Lord Denning defined public nuisance as:

one which is so wide spread in its range or so indiscriminate in its effect that it would not be reasonable to expect one person to take proceedings on his own responsibility to put a stop to it, but that it should be taken on the responsibility of the public at large.

6. Characteristics of Public Nuisance

- i. Public Nuisance is basically a crime. In Nigeria, it is prohibited by sections 192 and 194 of the Penal Code and section 234 of the criminal code. In the criminal code it is also called common nuisance. In Nigeria public nuisance is actionable by the Attorney General.
- ii. In England, a plaintiff can only bring an action for public nuisance where he demonstrates that the defendant's conduct has caused him 'particular damage' over and above that suffered by the general public. In **Winterbottom V Derby**, the defendant obstructed a public high way. The plaintiff brought this action. The plaintiff proved no damage peculiar to himself other than being delayed on several occasions as was the case of other road users. The court held he was not entitled to compensation for public nuisance. In **ROSE V MILES**, the defendant placed a barge in a public creek that served as community water way. The plaintiff who customarily transported goods on this creek was forced to transport the goods by land at double the cost of transport through the creek. The court held that he was entitled to compensation as he had suffered particular damage above other users of the creek.

- iii. In Nigeria, this rule was applicable until 1979. In **Amos V. Shell B.P. Development Company Ltd** the plaintiff sued the defendant because the defendant in the course of oil exploration constructed a dam across a public creek (in Ogbia Rivers State), which resulted in flooding of the plaintiff's community. The court held that the flooding affected the community as a whole, not just the plaintiff; therefore the plaintiff could not succeed in this action in which he had failed to show his specific loss. According to **Kodilinye and Aluko**, the reason for this rule is that where a defendant commits nuisance against the public as a whole, it is better for the attorney general as a representative of the public to bring an action against the defendant than for the members of the public to harass the defendant with multiple cases complaining of the same nuisance. This rule was overruled by section 6(6)/(b) of the 1979 Constitution. This section provides that the courts have judicial powers in all matters between persons and between government and to any person in Nigeria. This provision is repeated verbatim in section 6 (6)(b) of the 1999 Constitution. The Court of Appeal held in the case of **Adediran v Interland Transport Ltd** that by virtue of section 6(6)(b) of the 1979 constitution, any member of the public can bring an action in public nuisance without waiting for the consent of the attorney general.

7. ELEMENTS OF PUBLIC NUISANCE

- i. There are 2 elements of public Nuisance:
- The Nuisance is material
 - That the Nuisance is causing inconvenience to the public or interfering with the ordinary comfort of the public
- ii. For any act to constitute public nuisance it must be material. For Bola Chicago's car to breakdown and cover

one lane in NTA Road for 1 hour while he got a mechanic to fix it is not material enough to be nuisance.

- iii. In **Savage V. Akarinde** the defendant blocked the street with a heap of sand thereby interfered with the access of parents, pupils and staff to the plaintiff's school. The court held that it was public nuisance as it was interfering with the public use of the road.
- iv. In **Nwachukwu V. Egbuchu**, the defendant shut the road for personal reasons. The court held that it was public nuisance.

8. Private Nuisance

- i. Private Nuisance was defined by Scott L. J. in **Read V. Lyons & Co. Ltd.** as an unlawful interference with a person's use or enjoyment of land, or some right over, or in connection with it.
- ii. In **Hunter V. Canary Wharf Ltd** Lord Lloyd stated that: Private Nuisance takes three forms:
 - encroachment on a neighbour's land,
 - direct physical injury to the land;
 - or interference with the enjoyment of the land.
- iii. Direct physical injury to land is seen in the case of **Airobuyi V. Nigerian Pipeline Limited**. In this case,, the plaintiff sued the defendant company because the defendant company conducted sand blasting and pipe coating in a shed about 300 feet from the plaintiff's house. As a result of the operation, dust and smoke escaped from the pipe yard in sufficient quantities and caused damage to the plaintiff's house, discomfort and danger to health. The plaintiff complained in writing. The defendant admitted that they conducted their dust operation and justified their activities on the ground that it provided employment and promised to cease offending activities in three months. The plaintiff sued in Nuisance, the court found the defendant liable in Private Nuisance.
- iv. Example of interference with enjoyment of land is seen in the case of **Metro Gas Ltd V. Eferakeya**. In this case, the court held that the escape of gas from the premises of the appellant to the inconvenience of the

respondent, his family, patients, business, patrons, which inconvenience is also suffered by the public is an action based on Private Nuisance.

- v. Example of Encroachment on Land is seen in the case of **Eholor V. Idahosa**. In this case, the roof of the defendant's house abutted the plaintiff's house at such height and proximity that rain water falling thereon in turn fell on the plaintiff's house thereby damaging the plaintiff's walls. The court held that it was nuisance. Similarly, in **Karunwi V. Okunaiye**, the defendant's wall which separates his property from that of the plaintiff collapsed, damaging the plaintiff's property. The court held that the defendant was liable in nuisance.

9. ELEMENTS OF PRIVATE NUISANCE

- i. There are 2 basis of liability in the tort of nuisance:
- The damage complained of by the plaintiff must either be a sensible material injury to land or a substantial interference with enjoyment of land.
 - The defendant's conduct must be unreasonable in the circumstances
- ii. As regards sensible material injury to land, two cases will suffice. In **St. Helen's Smelting Co. V. Tipping**, the plaintiff who lived in an industrial area proved that his trees and shrubs had been damaged by fumes from the Defendant's copper-smelting works. It was held by the House of Lords that the Plaintiff's action in Nuisance succeeded, since there had been sensible material damage to his property. In **Ige V Taylor Woodrow (Nigeria) Ltd**, the defendants in constructing a building carried out pile driving which caused vibrations that damaged the plaintiff's house to the extent that the house had to be pulled down. It was held that the plaintiff's action for private nuisance succeeded.
- iii. As regards, interference with enjoyment of land, 3 cases will suffice. the case of *Abiola V Ijoma* will suffice. In **Abiola V. Ijoma**, the Plaintiff and Defendant occupied adjoining premises in a residential area in Lagos. The defendant kept poultry at the back of his house as a past time. The defendant purchased four hundred day-old chicks which he kept in pens erected against the boundary wall, which was about five feet from the plaintiff's house. The plaintiff claimed that excessive noise made by the

chickens in the early hours of the morning disturbed his sleep, and that nauseating smells from the pens interfered with his comfort. He sought damages and an injunction to restrain the alleged nuisance from the Lagos High court. The Plaintiff was awarded damages for substantial and significant interference with his enjoyment of his land. In **Tebite V. Nigeria Marine Trading Company Ltd**, the defendant who was in the business of boat building and repairs caused noxious fumes and constant loud noise to be released from his shop to the discomfort of the plaintiff, who was his neighbour. The plaintiff was a legal practitioner who owned a chambers next to the defendant's workshop. The court held that the plaintiff was entitled to damages for nuisance. Similarly in *Moore V. Nnado*, the plaintiff sued for nuisance on the grounds that the defendant caused him considerable discomfort by running a "palm wine joint" next to his property and causing excessive noise by playing his stereo very loud until late in the night. The court held that it was actionable nuisance.

iv. **THE DEFENDANT'S CONDUCT MUST BE UNREASONABLE IN THE CIRCUMSTANCES**

The conduct of the defendant must be unreasonable in the circumstances. In measuring the reasonableness of the defendant's conduct, the court will consider five elements:

- a. **THE LOCALITY**: This element will be considered as regards interference with enjoyment of land. Part of the reason for the decision in **Abiola V Ijoma** was the fact that the defendant carried out the poultry farm in a residential area.
- b. **Utility of the Defendant's Conduct**: The general rule is that the court will not refuse to hold an act to be nuisance just because it is of great utility. In **Bellew V. Cement Co Ltd**, the plaintiff brought an action for nuisance against the defendant for its cement manufacturing activity. The defendant argued that they were the only cement producing company in the country and that their activities were crucial for the housing sector of the country. The court held that their acts constitute nuisance and that the utility of the company notwithstanding an injunction would issue to close the company for 3 months for the correction of the production process. However, where the defendant's activity is unavoidable in a particular location the court will

hold the utility of the activity as an exemption for holding the activity to be nuisance. This consideration is particularly in relation to the grant of injunctions in the oil industry in Nigeria. In **Allar Tron V. Shell B.P. Development Company Limited**. The High Court refused a prayer of injunction to restrain the defendant from further polluting lands, creeks and fish ponds on the grounds that the injunction if granted, could stop the defendant's trade and render many unemployed and even affect the country's revenue since oil was the main income generator for Nigeria.

- c. **Plaintiff's Abnormal Sensitivity**: The Defendant would not be liable where the plaintiff suffers as a result of his abnormal sensitivity. In **Robinson v Klivert**, it was held that the defendant who put on a heater in the basement of his ground floor flat was not liable for damaging the 'sensitive pepper' in the plaintiff's flat on the first floor.
- d. **MALICE**: The defendant would be liable where his conduct was carried out solely for the purpose of annoying the plaintiff. In **Hollywood Silver Fox Farm Ltd V. Emmet**, the Defendant, out of spite fired guns on his land close to the boundary of the plaintiff's land during breeding time in order to cause the plaintiff's silver foxes to miscarry. The defendant was held liable in Nuisance for damage to the foxes. The court held that the harmful conduct of the defendant was not reasonable because it was motivated by spite. In **Christie V. Davey**, any time the plaintiff, a music teacher practiced her music instrument with her daughter, the defendant her neighbour would bang the wall, beat metal trays with hammers and scream on top of his voice. The defendant testified in court that he acted that way because the plaintiff's music practice was a huge annoyance to him. The court held that it was unreasonable for him to react that way and that he was liable for nuisance.
- e. **Duration of the Harm**: The court will consider if the defendant's conduct is temporary or permanent. A temporary inconvenience would not constitute nuisance.

10. DIFFERENCE BETWEEN PUBLIC NUISANCE AND PRIVATE NUISANCE

- Public nuisance is a crime and is a tort while, private nuisance is just a tort.
- To succeed in private nuisance a plaintiff must have an interest in land (that means he must be a landlord or a legal tenant). In public nuisance there is no such requirement.
- Public nuisance affects more than one person. Private nuisance affects only one person.
- Actions in Public nuisance may be brought by the Attorney General, the Police or a Private Individual. Actions in Private Nuisance is brought only by Private Nuisance.
- In some cases an individual must show personal injuries above that suffered by the general public in public nuisance. This is not the case in private nuisance.

11. SIMILARITIES BETWEEN PUBLIC NUISANCE AND PRIVATE NUISANCE

- The same action can be both public nuisance and private nuisance. For instance if Bola dams a river and water from the river floods the whole community where Joy lives and destroys Joy's farm.
- In both public nuisance and private nuisance, the activity of the defendant complained about must be substantial and unreasonable.

12. DAMAGES MUST HAVE BEEN SUFFERED

Nuisance is not actionable per se and damage must be proved by the plaintiff. In the case ***Adediran and another V. Interland Transport Ltd.*** it was stated that:

The law relating to Nuisance is fairly well settled. All who claimed to have been injured by the nuisance complained of must show a substantial injury to them individually, arising from the nuisance. The existence of nuisance per se does not provide a remedy.

In the case of ***Ikpede V. Shell B.P. Development Company of Nigeria*** Ovie-Whisky J. (as he then was) stated that:

Whether or not the plaintiff refers to the particulars of damage specifically by him as reasonable or adequate

compensation or by any other name, they still remain damage which must strictly be proven.

13. DEFENCES TO NUISANCE

- i. **STATUTORY AUTHORITY**: Where the defendant's action is authorized by statutes, this defense will avail. In **Lagos City Council V Olutimehin**, the defense of statutory authority availed the defendant whose night soil depot was emitting offensive smell into the plaintiff's school. The defendant claimed his activity was backed by the Lagos Local Government Act of 1959.
- ii. **Necessity**: where the activity causing injury to the plaintiff was undertaken by the defendant in emergency situations. In **Nields V L & N W** it was held that a defendant that built barricades over his land to prevent it from flooding was not liable where the barricades cause water to flood his neighbour's land.
- iii. **ACT OF GOD**: Where the injury to the plaintiff was facilitated by the interference of nature.
- iv. **Triviality**: Where the nuisance is not material. This is based on the rule of *de minimis non curat lex* that the law does not concern itself with trivialities.
- v. **Consent**: This is based on the latin maxim *Voluntati Non Fit Injuria*.